

Court No. - 37

Case :- WRIT - C No. - 5011 of 2020

Petitioner :- Govind

Respondent :- Uttar Pradesh Power Corporation Ltd. And
3 Others

Counsel for Petitioner :- Prashant Verma

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Abhinava Upadhyay,J.

Hon'ble Shamim Ahmed,J.

Recovery proceedings had been initiated against the petitioner for a sum of Rs.1,95,839 which are stated to be electricity dues.

Learned counsel for the petitioner submits that the petitioner accepts the entire liability and ready to pay the entire amount, provided some installments are fixed.

In this connection, it is pointed out that under Clause 6.14 of the Electricity Supply Code, 2005, the Executive Engineer is the appropriate authority to consider such a claim. If the petitioner files an application under Clause 6.14 before the Executive Engineer, the Executive Engineer will pass appropriate order in accordance with law, as far as possible, within one month from the date of certified copy of this order is presented before the authority concerned.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to the R.C. dated 24.11.2019 (Annexure No.3 to the writ petition).

With the aforesaid observations/directions, the writ petition is finally disposed of.

Order Date :- 11.2.2020

P.S.Parihar

(Shamim Ahmed,J.) (Abhinava Upadhyay,J.)